



Tiara Yachts, Inc. v. Blue Cross Blue Shield of Michigan, Docket No. 1:22-cv-00603 (W.D. Mich. Jul 01, 2022), Court Docket

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United States District Court  
Western District of Michigan (Southern Division (1))  
CIVIL DOCKET FOR CASE #: 1:22-cv-00603-RJJ-RSK

## Tiara Yachts, Inc. v. Blue Cross Blue Shield of Michigan

**Date Filed:** Jul 1, 2022  
**Status:** Reopened  
**Nature of suit:** 791 Labor: E.R.I.S.A.  
**Assigned to:** Judge Robert J. Jonker  
**Case in other court:** 6th Circuit, 24-01223  
**Cause:** 29:1001 E.R.I.S.A.: Employee Retirement  
**Jurisdiction:** Federal Question  
**Jury demand:** Plaintiff  
**Referred to:** Magistrate Judge Ray Kent

## Parties and Attorneys

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### plaintiff

**Tiara Yachts, Inc.**

#### Representation

**Chloe Cunningham**  
*Varnum LLP (GR)*  
P.O. Box 0352  
Grand Rapids, MI 49501-0352  
(616) 336-6932  
cncunningham.law@gmail.com  
Bridgewater Place  
TERMINATED: 12/04/2023  
ATTORNEY TO BE NOTICED

**Herman Daniel Hofman**

#### **Gage Michael Selvius**

*Varnum LLP (GR)*  
P.O. Box 0352  
Grand Rapids, MI 49501-0352  
(616) 336-6731  
Fax: (616) 336-7000  
gmselvius@varnumlaw.com  
Bridgewater Place  
ATTORNEY TO BE NOTICED

**Justin M. Wolber**

*Varnum LLP (GR)*  
P.O. Box 0352  
Grand Rapids, MI 49501-0352  
(616) 336-6375  
hdhofman@varnumlaw.com  
Bridgewater Place  
ATTORNEY TO BE NOTICED

*Varnum LLP (GR)*  
P.O. Box 0352  
Grand Rapids, MI 49501-0352  
(616) 336-6952  
jmwolber@varnumlaw.com  
Bridgewater Place  
TERMINATED: 02/13/2026  
ATTORNEY TO BE NOTICED

**Kyle Patrick Konwinski**  
*Varnum Riddering Schmidt &  
Howlett LLP (Grand Rapids)*  
333 Bridge St., NW  
P.O. Box 352  
Grand Rapids, MI 49501-0352  
(616) 336-6894  
kpkonwinski@varnumlaw.com  
Bridgewater Place  
ATTORNEY TO BE NOTICED

**Perrin Rynders**  
*Varnum LLP (GR)*  
P.O. Box 0352  
Grand Rapids, MI 49501-0352  
(616) 336-6734  
Fax: (616) 336-7000  
prynders@varnumlaw.com  
Bridgewater Place  
ATTORNEY TO BE NOTICED

**Aaron M. Phelps**  
*Varnum Riddering Schmidt &  
Howlett LLP (Grand Rapids)*  
333 Bridge St., NW  
P.O. Box 352  
Grand Rapids, MI 49501-0352  
(616) 336-6257  
amphelps@varnumlaw.com  
Bridgewater Place  
ATTORNEY TO BE NOTICED

---

**defendant**

**Blue Cross Blue Shield of Michigan**

**Representation**

**Michelle R. Heikka**  
*Blue Cross Blue Shield of  
Michigan (Detroit)*  
600 E Lafayette., P.O Box 1925  
Detroit, MI 48226  
(818) 988-2640

**Daniel Craig Lewis**  
*Allen Overy Shearman Sterling  
US LLP (NY)*  
599 Lexington Ave.  
New York, NY 10022  
(212) 848-7181

mheikka@bcbsm.com  
LEAD ATTORNEY  
ATTORNEY TO BE NOTICED

daniel.lewis@aoshearman.com  
ATTORNEY TO BE NOTICED

**Elizabeth Y. Austin**  
*Sidley Austin LLP (IL)*  
One S Dearborn St.  
Chicago, IL 60603  
(312) 853-7000  
Fax: (312) 853-7036  
laustin@sidley.com  
TERMINATED: 06/30/2025

**Jason M. Schneider**  
*Zausmer, PC*  
32255 Northwestern Hwy., Ste.  
225  
Farmington Hills, MI 48334  
(248) 851-4111  
jschneider@zausmer.com  
ATTORNEY TO BE NOTICED

**Jeffrey D. Hoschander**  
*Allen Overy Shearman Sterling  
US LLP (NY)*  
599 Lexington Ave.  
New York, NY 10022  
(212) 848-7181  
jeff.hoschander@aoshearman.com  
ATTORNEY TO BE NOTICED

**Kathleen L. Carlson**  
*Sidley Austin LLP (IL)*  
One S Dearborn St.  
Chicago, IL 60603  
(312) 853-7000  
kathleen.carlson@sidley.com  
TERMINATED: 06/30/2025

**Mark J. Zausmer**  
*Zausmer, PC*  
32255 Northwestern Hwy., Ste.  
225  
Farmington Hills, MI 48334  
(248) 851-4111  
mzausmer@zausmer.com  
ATTORNEY TO BE NOTICED

**Michael Aaron Schwartz**  
*Zausmer, PC*  
32255 Northwestern Hwy., Ste.  
225  
Farmington Hills, MI 48334  
(248) 851-4111  
Fax: (248) 851-0100  
mschwartz@zausmer.com  
ATTORNEY TO BE NOTICED

**Nathan Scherbarth**  
*Zausmer, PC*  
32255 Northwestern Hwy., Ste.  
225  
Farmington Hills, MI 48334  
(248) 851-4111  
nscherbarth@zausmer.com

**Rebecca D'Arcy O'Reilly**  
*Bodman PLC (Detroit)*  
1901 St. Antoine St.  
6th Fl. at Ford Field  
Detroit, MI 48226  
roreilly@eastersealsmorc.org  
TERMINATED: 06/13/2023

ATTORNEY TO BE NOTICED

**Samantha Kay Wiesner Van Sumeren**

*Bodman PLC (Detroit)*  
1901 St. Antoine St.  
6th Fl. at Ford Field  
Detroit, MI 48226  
(313) 392-1057  
SVanSumeren@bodmanlaw.com  
TERMINATED: 07/19/2023

**Tacy F. Flint**

*Sidley Austin LLP (IL)*  
One S Dearborn St.  
Chicago, IL 60603  
(312) 853-7000  
tflint@sidley.com  
TERMINATED: 06/30/2025

ATTORNEY TO BE NOTICED

**Sarah L. Cylkowski**

*Bodman PLC (Detroit)*  
1901 St. Antoine St.  
6th Fl. at Ford Field  
Detroit, MI 48226  
(313) 393-7581  
scylkowski@bodmanlaw.com  
TERMINATED: 08/12/2025  
ATTORNEY TO BE NOTICED

**Todd M. Stenerson**

*Allen Overy Shearman Sterling US LLP*  
1101 New York Ave., NW  
Washington, DC 20005  
(202) 508-8093  
todd.stenerson@aoshearman.com  
ATTORNEY TO BE NOTICED

---

counter-claimant

**Blue Cross Blue Shield of Michigan**

**Representation**

**Michelle R. Heikka**

(See above for address)  
LEAD ATTORNEY  
ATTORNEY TO BE NOTICED

**Daniel Craig Lewis**

(See above for address)  
ATTORNEY TO BE NOTICED

**Elizabeth Y. Austin**

(See above for address)  
TERMINATED: 06/30/2025

**Jason M. Schneider**

(See above for address)  
ATTORNEY TO BE NOTICED

**Jeffrey D. Hoschander**

(See above for address)  
ATTORNEY TO BE NOTICED

**Kathleen L. Carlson**

(See above for address)  
TERMINATED: 06/30/2025

**Mark J. Zausmer**

(See above for address)  
ATTORNEY TO BE NOTICED

**Michael Aaron Schwartz**

(See above for address)  
ATTORNEY TO BE NOTICED

**Nathan Scherbarth**  
(See above for address)  
ATTORNEY TO BE NOTICED

**Rebecca D'Arcy O'Reilly**  
(See above for address)  
TERMINATED: 06/13/2023  
ATTORNEY TO BE NOTICED

**Samantha Kay Wiesner Van Sumeren**  
(See above for address)  
TERMINATED: 07/19/2023

**Sarah L. Cylkowski**  
(See above for address)  
TERMINATED: 08/12/2025  
ATTORNEY TO BE NOTICED

**Tacy F. Flint**  
(See above for address)  
TERMINATED: 06/30/2025

**Todd M. Stenerson**  
(See above for address)  
ATTORNEY TO BE NOTICED

---

**counter-defendant**

**Tiara Yachts, Inc.**

**Representation**

**Chloe Cunningham**  
(See above for address)  
TERMINATED: 12/04/2023  
ATTORNEY TO BE NOTICED

**Gage Michael Selvius**  
(See above for address)  
ATTORNEY TO BE NOTICED

**Herman Daniel Hofman**  
(See above for address)  
ATTORNEY TO BE NOTICED

**Justin M. Wolber**  
(See above for address)  
TERMINATED: 02/13/2026  
ATTORNEY TO BE NOTICED

**Kyle Patrick Konwinski**  
(See above for address)  
ATTORNEY TO BE NOTICED

**Perrin Rynders**  
(See above for address)  
ATTORNEY TO BE NOTICED

**Aaron M. Phelps**  
(See above for address)  
ATTORNEY TO BE NOTICED

## Docket Entries

Numbers shown are court assigned numbers.

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                                                                                                                               |
|---------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1       | Jul 1, 2022  | COMPLAINT against Blue Cross Blue Shield of Michigan filed by TIARA YACHTS, INC. (Attachments: # 1 Index, # 2 Exhibit A - 9-14-17 BCBSM Email Chain, # 3 Exhibit B - 2017 List of Customers Impacted by Flip Logic, # 4 Exhibit C - 9-19-17 BCBSM Email Chain, # 5 Exhibit D - Wegner Complaint, # 6 Exhibit E - SPP Internal Memo, # 7 Exhibit F - Payment Integrity Presentation) (Phelps, Aaron) (Entered: 07/01/2022) |
| 2       | Jul 1, 2022  | PROPOSED SUMMONS to be issued re 1 (Phelps, Aaron) (Entered: 07/01/2022)                                                                                                                                                                                                                                                                                                                                                  |
| 3       | Jul 1, 2022  | CORPORATE DISCLOSURE STATEMENT by TIARA YACHTS, INC. (Phelps, Aaron) (Entered: 07/01/2022)                                                                                                                                                                                                                                                                                                                                |
|         | Jul 1, 2022  | (NON-DOCUMENT) ATTORNEY APPEARANCE of Chloe Cunningham on behalf of plaintiff TIARA YACHTS, INC. (Cunningham, Chloe) (Entered: 07/01/2022)                                                                                                                                                                                                                                                                                |
|         | Jul 1, 2022  | RECEIPT: in the amount of \$402.00, receipt number AMIWDC-6782282; for filing fee (ns) (Entered: 07/05/2022)                                                                                                                                                                                                                                                                                                              |
| 4       | Jul 5, 2022  | NOTICE that this case has been assigned Robert J. Jonker (ns) (Entered: 07/05/2022)                                                                                                                                                                                                                                                                                                                                       |
| 5       | Jul 5, 2022  | SUMMONS ISSUED as to defendant Blue Cross Blue Shield of Michigan (ns) (Entered: 07/05/2022)                                                                                                                                                                                                                                                                                                                              |
|         | Jul 5, 2022  | (NON-DOCUMENT) ATTORNEY APPEARANCE of Perrin Rynders on behalf of plaintiff Tiara Yachts, Inc. (Rynders, Perrin) (Entered: 07/05/2022)                                                                                                                                                                                                                                                                                    |
|         | Jul 5, 2022  | (NON-DOCUMENT) ATTORNEY APPEARANCE of Kyle Patrick Konwinski on behalf of plaintiff Tiara Yachts, Inc. (Konwinski, Kyle) (Entered: 07/05/2022)                                                                                                                                                                                                                                                                            |
| 6       | Jul 6, 2022  | SUMMONS returned executed; Blue Cross Blue Shield of Michigan served on 7/5/2022, answer due 7/26/2022 (Phelps, Aaron) (Entered: 07/06/2022)                                                                                                                                                                                                                                                                              |
|         | Jul 20, 2022 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Sarah L. Cylkowski on behalf of defendant Blue Cross Blue Shield of Michigan (Cylkowski, Sarah) (Entered: 07/20/2022)                                                                                                                                                                                                                                                               |
|         | Jul 20, 2022 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Rebecca D'Arcy O'Reilly on behalf of defendant Blue Cross Blue Shield of Michigan (O'Reilly, Rebecca) (Entered: 07/20/2022)                                                                                                                                                                                                                                                         |
| 7       | Jul 20, 2022 | CORPORATE DISCLOSURE STATEMENT by Blue Cross Blue Shield of Michigan (Cylkowski, Sarah) Modified text on 7/20/2022 (pjw). (Entered: 07/20/2022)                                                                                                                                                                                                                                                                           |
| 8       | Jul 20, 2022 | STIPULATION and PROPOSED ORDER to Modify Answer Deadline by defendant Blue Cross Blue Shield of Michigan (Cylkowski, Sarah) Modified text on 7/20/2022 (pjw). (Entered: 07/20/2022)                                                                                                                                                                                                                                       |
| 9       | Jul 21, 2022 | ORDER granting STIPULATION 8 ; Blue Cross Blue Shield of Michigan shall answer or respond by August 25, 2022; signed by Judge Robert J. Jonker (elam) Modified text per chambers on 7/28/2022 (pjw). (Entered: 07/21/2022)                                                                                                                                                                                                |
| 10      | Jul 21, 2022 | ORDER setting Rule 16 scheduling conference: Rule 16 scheduling conference is set for 9/21/2022 at 03:00 PM at 699 Federal Building, Grand Rapids, MI before Judge Robert J. Jonker; joint status report due by 9/14/2022; signed by Judge Robert J. Jonker (elam) (Entered: 07/21/2022)                                                                                                                                  |
|         | Jul 26, 2022 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Samantha Kay Wiesner Van Sumeren on behalf of defendant Blue Cross Blue Shield of Michigan (Van Sumeren,                                                                                                                                                                                                                                                                            |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|---------|--------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|         |              | Samantha) (Entered: 07/26/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|         | Aug 23, 2022 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Tacy F. Flint on behalf of defendant Blue Cross Blue Shield of Michigan (Flint, Tacy) (Entered: 08/23/2022)                                                                                                                                                                                                                                                                                                               |
|         | Aug 23, 2022 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Elizabeth Y. Austin on behalf of defendant Blue Cross Blue Shield of Michigan (Austin, Elizabeth) (Entered: 08/23/2022)                                                                                                                                                                                                                                                                                                   |
|         | Aug 23, 2022 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Kathleen L. Carlson on behalf of defendant Blue Cross Blue Shield of Michigan (Carlson, Kathleen) (Entered: 08/23/2022)                                                                                                                                                                                                                                                                                                   |
| 11      | Aug 25, 2022 | MOTION to dismiss for failure to state a claim by defendant Blue Cross Blue Shield of Michigan; (Flint, Tacy) (Entered: 08/25/2022)                                                                                                                                                                                                                                                                                                                             |
| 12      | Aug 25, 2022 | BRIEF in support of MOTION to dismiss for failure to state a claim 11 with certificate of compliance filed by Blue Cross Blue Shield of Michigan (Attachments: # 1 Index of Exhibits, # 2 Exhibit A - Admin Service Contract, # 3 Exhibit B - Register of Actions, Wegner v. BCBSM, # 4 Exhibit C - Amendment to Admin Service Contract, # 5 Exhibit D - Sch A to Admin Service Contract) (Flint, Tacy) Modified text on 8/26/2022 (pjw). (Entered: 08/25/2022) |
| 13      | Sep 14, 2022 | JOINT STATUS REPORT (O'Reilly, Rebecca) (Entered: 09/14/2022)                                                                                                                                                                                                                                                                                                                                                                                                   |
| 14      | Sep 21, 2022 | MINUTES of Rule 16 scheduling conference held before Judge Robert J. Jonker (Court Reporter: Paul Brandell) (Judge Robert J. Jonker, sdb) (Entered: 09/21/2022)                                                                                                                                                                                                                                                                                                 |
| 15      | Sep 21, 2022 | NOTICE OF MOTION HEARING regarding document number 11 : motion hearing is set for 11/7/2022 at 03:00 PM at 699 Federal Building, Grand Rapids, MI before Judge Robert J. Jonker; (Judge Robert J. Jonker, sdb) (Entered: 09/21/2022)                                                                                                                                                                                                                            |
| 16      | Sep 22, 2022 | RESPONSE in opposition to MOTION to dismiss for failure to state a claim 11 filed by Tiara Yachts, Inc. (Attachments: # 1 Index, # 2 Exhibit A - Unpublished Cases) (Phelps, Aaron) (Entered: 09/22/2022)                                                                                                                                                                                                                                                       |
| 17      | Sep 30, 2022 | NOTICE RESCHEDULING MOTION HEARING regarding document number 11 that was previously set for 11/7/22; motion hearing is set for 11/15/2022 at 04:00 PM at 699 Federal Building, Grand Rapids, MI before Judge Robert J. Jonker; (elam) (Entered: 09/30/2022)                                                                                                                                                                                                     |
| 18      | Oct 6, 2022  | RESPONSE in support of MOTION to dismiss for failure to state a claim 11 with certificate of compliance filed by Blue Cross Blue Shield of Michigan (Flint, Tacy) Modified text on 10/7/2022 (pjw). (Entered: 10/06/2022)                                                                                                                                                                                                                                       |
| 19      | Nov 15, 2022 | NOTICE RESCHEDULING MOTION HEARING regarding document number 11 that was previously set for 04:00 PM on 11/15/22; motion hearing is set for 11/15/2022 at 03:00 PM at 699 Federal Building, Grand Rapids, MI before Judge Robert J. Jonker; (Judge Robert J. Jonker, sdb) (Entered: 11/15/2022)                                                                                                                                                                 |
| 20      | Nov 15, 2022 | MINUTES of motion hearing re 11 MOTION to dismiss for failure to state a claim filed by Blue Cross Blue Shield of Michigan held before Judge Robert J. Jonker (Court Reporter: Paul Brandell) (Judge Robert J. Jonker, sdb) (Entered: 11/15/2022)                                                                                                                                                                                                               |
| 21      | Feb 12, 2023 | TRANSCRIPT of R16 held 09/21/2022 before Honorable Robert J. Jonker; NOTE: this transcript may be viewed at the court public terminal or purchased through the Court                                                                                                                                                                                                                                                                                            |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---------|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|         |              | Reporter/Transcriber before the release of transcript restriction date; after that date it may be obtained through PACER; under the Policy Regarding Transcripts the parties have 14 days within which to file a Notice of Intent to redact, and 21 days within which to file a Redaction Request; if no Transcript Redaction Request is filed, the court will assume redaction of personal identifiers is not necessary and this transcript will be made available via PACER after the release of transcript restriction set for 5/15/2023 ; redaction request due 3/6/2023 (Court Reporter-Transcriptionist: Brandell, Paul (517) 230-7507) (Entered: 02/12/2023)                                                                                                                                                                                |
| 22      | Feb 12, 2023 | TRANSCRIPT of Oral Argument held 11/15/2022 before Honorable Robert J. Jonker; NOTE: this transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the release of transcript restriction date; after that date it may be obtained through PACER; under the Policy Regarding Transcripts the parties have 14 days within which to file a Notice of Intent to redact, and 21 days within which to file a Redaction Request; if no Transcript Redaction Request is filed, the court will assume redaction of personal identifiers is not necessary and this transcript will be made available via PACER after the release of transcript restriction set for 5/15/2023 ; redaction request due 3/6/2023 (Court Reporter-Transcriptionist: Brandell, Paul (517) 230-7507) (Entered: 02/12/2023) |
| 23      | Feb 27, 2023 | OPINION AND ORDER granting 11 motion to dismiss; this case is DISMISSED; signed by Judge Robert J. Jonker (elam) (Entered: 02/27/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 24      | Feb 27, 2023 | JUDGMENT in favor of Defendant against Plaintiff; signed by Judge Robert J. Jonker (elam) (Entered: 02/27/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 25      | Mar 13, 2023 | MOTION for attorney fees and costs by defendant Blue Cross Blue Shield of Michigan; (Flint, Tacy) (Entered: 03/13/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 26      | Mar 13, 2023 | MEMORANDUM in support of Motion for Attorney Fees 25 filed by Blue Cross Blue Shield of Michigan (Attachments: # 1 Index of Exhibits, # 2 Exhibit A - Comau's Second Amended Complaint, Comau v. BCBSM, No. 2:19-cv-12623-BAF-CI (E.D. Mich.), # 3 Exhibit B - Comau's Index of Exhibits in Support of Second Amended Complaint, Comau v. BCBSM, No. 2:19-cv-12623-BAF-CI (E.D. Mich.), # 4 Exhibit C - Release Agreement, # 5 Exhibit D - Email from S. Cylkowski to P. Rynders (Aug. 29, 2022), # 6 Exhibit E - Email from P. Rynders to S. Cylkowski (Sept. 14, 2022), # 7 Exhibit F - Varnum's Website - "About Our Firm", # 8 Exhibit G - Howard Walker, 9 Must-See Yachts Debuting at the Miami International Boat Show (Feb. 9, 2023) (linked on Tiara Yachts' Website - "Articles Section")) (Flint, Tacy) (Entered: 03/13/2023)           |
| 27      | Mar 13, 2023 | CERTIFICATE regarding compliance with LCivR 7.1(d) re MOTION for attorney fees and costs 25 filed by Blue Cross Blue Shield of Michigan (Flint, Tacy) (Entered: 03/13/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 28      | Mar 27, 2023 | MOTION to alter judgment or Amend Judgment by plaintiff Tiara Yachts, Inc.; (Cunningham, Chloe) (Entered: 03/27/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 29      | Mar 27, 2023 | BRIEF in support of MOTION to alter judgment or Amend Judgment 28 with certificate of compliance filed by Tiara Yachts, Inc. (Attachments: # 1 Exhibit 1 - Unpublished Cases) (Cunningham, Chloe) Modified text on 3/28/2023 (pjw). (Entered: 03/27/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 30      | Mar 27, 2023 | CERTIFICATE regarding compliance with LCivR 7.1(d) re MOTION to alter judgment or Amend Judgment 28 filed by Tiara Yachts, Inc. (Cunningham, Chloe) (Entered: 03/27/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                                                                                       |
|---------|--------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 31      | Mar 27, 2023 | RESPONSE in opposition to MOTION for attorney fees and costs 25 with certificate of compliance filed by Tiara Yachts, Inc. (Attachments: # 1 Index, # 2 Exhibit 1 - Rynders Declaration, # 3 Exhibit 2 - Table of BCBSM Cases, # 4 Exhibit 3 - Unpublished Cases, # 5 Exhibit 4 - Email from Counsel) (Cunningham, Chloe) Modified text on 3/28/2023 (pjw). (Entered: 03/27/2023) |
| 32      | Mar 27, 2023 | MOTION for leave to file Amended Complaint by plaintiff Tiara Yachts, Inc.; (Cunningham, Chloe) (Entered: 03/27/2023)                                                                                                                                                                                                                                                             |
| 33      | Mar 27, 2023 | BRIEF in support of MOTION for leave to file Amended Complaint 32 with certificate of compliance filed by Tiara Yachts, Inc. (Attachments: # 1 Index, # 2 Exhibit 1 - Proposed Amended Complaint, # 3 Exhibit 2 - Unpublished Cases) (Cunningham, Chloe) Modified text on 3/28/2023 (pjw). (Entered: 03/27/2023)                                                                  |
| 34      | Mar 27, 2023 | CERTIFICATE regarding compliance with LCivR 7.1(d) re MOTION for leave to file Amended Complaint 32 filed by Tiara Yachts, Inc. (Cunningham, Chloe) (Entered: 03/27/2023)                                                                                                                                                                                                         |
| 35      | Apr 3, 2023  | PROPOSED STIPULATION and ORDER to modify response deadline by defendant Blue Cross Blue Shield of Michigan (Cylkowski, Sarah) Modified text on 4/4/2023 (pjw). (Entered: 04/03/2023)                                                                                                                                                                                              |
| 36      | Apr 3, 2023  | ORDER granting STIPULATION 35 ; signed by Judge Robert J. Jonker (Judge Robert J. Jonker, sdb) (Entered: 04/03/2023)                                                                                                                                                                                                                                                              |
| 37      | Apr 5, 2023  | MOTION for leave to file Reply in Support of its Attorneys' Fees and Costs by defendant Blue Cross Blue Shield of Michigan; (Attachments: # 1 Exhibit A - BCBSM's Reply Brief ISO of Motion for Attorneys' Fees) (Flint, Tacy) (Entered: 04/05/2023)                                                                                                                              |
| 38      | Apr 5, 2023  | NOTICE re 37 Certificate of Compliance with Local Rule 7.1(d) by defendant Blue Cross Blue Shield of Michigan (Flint, Tacy) (Entered: 04/05/2023)                                                                                                                                                                                                                                 |
| 39      | Apr 10, 2023 | NOTICE re 28 Plaintiff's Motion to Alter or Amend Judgment by defendant Blue Cross Blue Shield of Michigan (Flint, Tacy) (Entered: 04/10/2023)                                                                                                                                                                                                                                    |
| 40      | Apr 10, 2023 | ORDER regarding response to Motion to Alter Judgment 28 Defendant shall file a response no later than 4/24/2023; signed by Judge Robert J. Jonker (elam) (Entered: 04/10/2023)                                                                                                                                                                                                    |
| 41      | Apr 17, 2023 | RESPONSE in opposition to MOTION for leave to file Amended Complaint 32 with certificate of compliance filed by Blue Cross Blue Shield of Michigan (Attachments: # 1 Index of Exhibits, # 2 Exhibit A) (Flint, Tacy) Modified text on 4/18/2023 (pjw). (Entered: 04/17/2023)                                                                                                      |
| 42      | Apr 19, 2023 | RESPONSE in opposition to MOTION for leave to file Reply in Support of its Attorneys' Fees and Costs 37 with certificate of compliance filed by Tiara Yachts, Inc. (Cunningham, Chloe) Modified text on 4/19/2023 (pjw). (Entered: 04/19/2023)                                                                                                                                    |
| 43      | Apr 24, 2023 | RESPONSE TO MOTION to alter judgment or Amend Judgment 28 with certificate of compliance filed by Blue Cross Blue Shield of Michigan (Flint, Tacy) Modified text on 4/25/2023 (pjw). (Entered: 04/24/2023)                                                                                                                                                                        |
| 44      | Jun 13, 2023 | NOTICE of Withdrawal of Attorney by defendant Blue Cross Blue Shield of Michigan (Van Sumeren, Samantha) (Entered: 06/13/2023)                                                                                                                                                                                                                                                    |
| 45      | Jul 19, 2023 | NOTICE of Withdrawal of Attorney by defendant Blue Cross Blue Shield of Michigan                                                                                                                                                                                                                                                                                                  |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                           |
|---------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|         |              | (Cylkowski, Sarah) (Entered: 07/19/2023)                                                                                                                                                                                              |
| 46      | Dec 4, 2023  | NOTICE of Withdrawal of Attorney by plaintiff Tiara Yachts, Inc. (Cunningham, Chloe) (Entered: 12/04/2023)                                                                                                                            |
| 47      | Feb 21, 2024 | OPINION AND ORDER denying 25 motion for attorney fees; denying 28 motion to alter judgment ; denying 32 motion for leave to file; granting 37 motion for leave to file; signed by Judge Robert J. Jonker (elam) (Entered: 02/21/2024) |
| 48      | Feb 21, 2024 | REPLY to response to motion 25 (titled Reply in support of its motion for attorneys' fees and costs) with certificate of compliance filed by Blue Cross Blue Shield of Michigan (pjw) (Entered: 02/22/2024)                           |
|         | Mar 19, 2024 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Herman Daniel Hofman on behalf of plaintiff Tiara Yachts, Inc. (Hofman, Herman) (Entered: 03/19/2024)                                                                                           |
| 49      | Mar 19, 2024 | NOTICE OF APPEAL re 47 , 24 , 23 by plaintiff Tiara Yachts, Inc. (Hofman, Herman) (Entered: 03/19/2024)                                                                                                                               |
|         | Mar 19, 2024 | APPEAL FEE PAID re 49 by plaintiff Tiara Yachts, Inc. in the amount of \$605, receipt number AMIWDC-7324184 (Hofman, Herman) (Entered: 03/19/2024)                                                                                    |
| 50      | Mar 20, 2024 | LETTER FROM CCA regarding appeal 49 assigning CASE NUMBER 24-1223 indicating Civil Case Docketed (jjm) (Entered: 03/20/2024)                                                                                                          |
| 51      | May 21, 2025 | OPINION and JUDGMENT of USCA re appeal 49 reversing the district court's dismissal of Tiara Yachts' complaint and remanding for further proceedings; mandate to issue (pjw); Modified text on 5/21/2025 (pjw) (Entered: 05/21/2025)   |
| 52      | Jun 12, 2025 | MANDATE of USCA re appeal 49 (jjm) (Entered: 06/12/2025)                                                                                                                                                                              |
|         | Jun 20, 2025 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Todd M. Stenerson on behalf of defendant Blue Cross Blue Shield of Michigan (Stenerson, Todd) (Entered: 06/20/2025)                                                                             |
|         | Jun 23, 2025 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Mark J. Zausmer on behalf of defendant Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 06/23/2025)                                                                                 |
|         | Jun 23, 2025 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Michael Aaron Schwartz on behalf of defendant Blue Cross Blue Shield of Michigan (Schwartz, Michael) (Entered: 06/23/2025)                                                                      |
|         | Jun 23, 2025 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Nathan Scherbarth on behalf of defendant Blue Cross Blue Shield of Michigan (Scherbarth, Nathan) (Entered: 06/23/2025)                                                                          |
|         | Jun 23, 2025 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Jason M. Schneider on behalf of defendant Blue Cross Blue Shield of Michigan (Schneider, Jason) (Entered: 06/23/2025)                                                                           |
| 53      | Jun 23, 2025 | MOTION for extension of time to file answer re 1 Expedited Consideration Requested with Brief in Support by defendant Blue Cross Blue Shield of Michigan (Zausmer, Mark) Modified text on 6/24/2025 (pjw) (Entered: 06/23/2025)       |
| 54      | Jun 23, 2025 | CERTIFICATE regarding compliance with LCivR 7.1(d) re MOTION for extension of time to file answer re 1 Expedited Consideration Requested 53 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 06/23/2025)         |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                |
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| 55      | Jun 24, 2025 | RESPONSE in opposition to MOTION for extension of time to file answer re 1 Expedited Consideration Requested 53 filed by Tiara Yachts, Inc. (Phelps, Aaron) (Entered: 06/24/2025)                                                                                                          |
| 56      | Jun 25, 2025 | MOTION to withdraw as attorney of Tacy F. Flint by defendant Blue Cross Blue Shield of Michigan; (Flint, Tacy) Modified text on 6/26/2025 (mlc) (Entered: 06/25/2025)                                                                                                                      |
| 57      | Jun 25, 2025 | MOTION to withdraw as attorney of Elizabeth Y. Austin by defendant Blue Cross Blue Shield of Michigan; (Austin, Elizabeth) Modified text on 6/26/2025 (mlc) (Entered: 06/25/2025)                                                                                                          |
| 58      | Jun 25, 2025 | MOTION to withdraw as attorney of Kathleen L. Carlson by defendant Blue Cross Blue Shield of Michigan; (Carlson, Kathleen) Modified text on 6/26/2025 (mlc) (Entered: 06/25/2025)                                                                                                          |
| 59      | Jun 26, 2025 | PROPOSED STIPULATION and ORDER to Modify Responsive Pleading Deadline by defendant Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 06/26/2025)                                                                                                                                |
| 60      | Jun 26, 2025 | ORDER granting STIPULATION 59 ; defendant's response to answer due not later than 7/7/25; signed by Judge Robert J. Jonker (sjc) (Entered: 06/26/2025)                                                                                                                                     |
| 61      | Jun 30, 2025 | ORDER granting 56 motion to withdraw as attorney (Tacy F. Flint); signed by Judge Robert J. Jonker (sjc) Modified text on 7/1/2025 (pjw) (Entered: 06/30/2025)                                                                                                                             |
| 62      | Jun 30, 2025 | ORDER granting 57 motion to withdraw as attorney (Elizabeth Y. Austin); signed by Judge Robert J. Jonker (sjc) Modified text on 7/1/2025 (pjw) (Entered: 06/30/2025)                                                                                                                       |
| 63      | Jun 30, 2025 | ORDER granting 58 motion to withdraw as attorney (Kathleen L. Carlson); signed by Judge Robert J. Jonker (sjc) Modified text on 7/1/2025 (pjw) (Entered: 06/30/2025)                                                                                                                       |
| 64      | Jun 30, 2025 | ORDER setting Rule 16 scheduling conference: Rule 16 scheduling conference is set for 8/11/2025 at 04:00 PM in person at 699 Federal Building, Grand Rapids, MI before Judge Robert J. Jonker; status report due by 8/4/2025; signed by Judge Robert J. Jonker (sjc) (Entered: 06/30/2025) |
|         | Jul 7, 2025  | (NON-DOCUMENT) ATTORNEY APPEARANCE of Daniel Craig Lewis on behalf of defendant Blue Cross Blue Shield of Michigan (Lewis, Daniel) (Entered: 07/07/2025)                                                                                                                                   |
|         | Jul 7, 2025  | (NON-DOCUMENT) ATTORNEY APPEARANCE of Jeffrey D. Hoschander on behalf of defendant Blue Cross Blue Shield of Michigan (Hoschander, Jeffrey) (Entered: 07/07/2025)                                                                                                                          |
| 65      | Jul 7, 2025  | MOTION to dismiss for failure to state a claim by defendant Blue Cross Blue Shield of Michigan; (Zausmer, Mark) (Entered: 07/07/2025)                                                                                                                                                      |
| 66      | Jul 7, 2025  | BRIEF in support of MOTION to dismiss for failure to state a claim 65 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 07/07/2025)                                                                                                                                    |
| 67      | Jul 7, 2025  | CERTIFICATE of compliance re word count for Brief in Support of a Motion 66 , MOTION to dismiss for failure to state a claim 65 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 07/07/2025)                                                                          |
| 68      | Jul 16, 2025 | MOTION to withdraw as attorney by attorney Sarah Cylkowski (Cylkowski, Sarah) Modified text on 7/17/2025 (eod) (Entered: 07/16/2025)                                                                                                                                                       |
| 69      | Jul 18, 2025 | MOTION to stay Discovery Pending Resolution of its Motion to Dismiss by defendant Blue Cross Blue Shield of Michigan; (Zausmer, Mark) (Entered: 07/18/2025)                                                                                                                                |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
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| 70      | Jul 18, 2025 | BRIEF in support of MOTION to stay Discovery Pending Resolution of its Motion to Dismiss 69 filed by Blue Cross Blue Shield of Michigan (Attachments: # 1 Exhibit A) (Zausmer, Mark) Modified text on 7/21/2025 (pjw) (Entered: 07/18/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 71      | Jul 18, 2025 | CERTIFICATE of compliance re word count for MOTION to stay Discovery Pending Resolution of its Motion to Dismiss 69 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 07/18/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 72      | Jul 24, 2025 | RESPONSE in opposition to MOTION to dismiss for failure to state a claim 65 filed by Tiara Yachts, Inc. (Attachments: # 1 Exhibit A) (Rynders, Perrin) (Entered: 07/24/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 73      | Jul 24, 2025 | CERTIFICATE of compliance re word count for Response in Opposition 72 filed by Tiara Yachts, Inc. (Rynders, Perrin) (Entered: 07/24/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 74      | Jul 29, 2025 | RESPONSE in opposition to MOTION to stay Discovery Pending Resolution of its Motion to Dismiss 69 filed by Tiara Yachts, Inc. (Phelps, Aaron) (Entered: 07/29/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 75      | Aug 4, 2025  | JOINT STATUS REPORT (Rynders, Perrin) (Entered: 08/04/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 76      | Aug 7, 2025  | REPLY to response to motion 65 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 08/07/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 77      | Aug 7, 2025  | CERTIFICATE of compliance re word count for Reply to Response to Motion 76 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 08/07/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 78      | Aug 11, 2025 | MINUTES of scheduling conference held before Judge Robert J. Jonker (Court Reporter: Paul Brandell) (elam) (Entered: 08/11/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 79      | Aug 12, 2025 | ORDER denying 65 motion to dismiss; granting 68 motion to withdraw as attorney; denying 69 motion to stay; the Court will issue a CMO via separate order; signed by Judge Robert J. Jonker (elam) (Entered: 08/12/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 80      | Aug 14, 2025 | FIRST CASE MANAGEMENT ORDER:(A supplement to the Joint Status Report regarding ADR is due not later than 12/31/2025) discovery to be completed by 5/31/2026; dispositive motions due by 6/30/2026; updated joint status report due by 7/20/2026; Rule 16 scheduling conference is set for 7/27/2026 at 03:00 PM IN PERSON at 699 Federal Building, Grand Rapids, MI before Judge Robert J. Jonker; signed by Judge Robert J. Jonker (elam) Modified text on 8/14/2025 (pjw) (Entered: 08/14/2025)                                                                                                                                                                                                                                                                                                                                                                |
| 81      | Aug 28, 2025 | TRANSCRIPT of R16 Scheduling Conference held 08/11/2025 before Honorable Robert J. Jonker; NOTE: this transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the release of transcript restriction date; after that date it may be obtained through PACER; under the Policy Regarding Transcripts the parties have 14 days within which to file a Notice of Intent to redact, and 21 days within which to file a Redaction Request; if no Transcript Redaction Request is filed, the court will assume redaction of personal identifiers is not necessary and this transcript will be made available via PACER after the release of transcript restriction set for 11/26/2025 ; redaction request due 9/18/2025 (Court Reporter-Transcriptionist: Brandell, Paul (517) 230-7507) (Entered: 08/28/2025) |
| 82      | Sep 4, 2025  | MOTION for protective order with Brief in Support by defendant Blue Cross Blue Shield of Michigan (Attachments: # 1 Index, # 2 Exhibit A - First Discovery Requests, # 3 Exhibit B - August 22, 2025 Correspondence) (Zausmer, Mark) Modified text on 9/5/2025 (pjw) (Entered: 09/04/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 83      | Sep 4, 2025  | CERTIFICATE of compliance re word count for MOTION for protective order 82 filed                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                                                        |
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|         |              | by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 09/04/2025)                                                                                                                                                                                                                                                                        |
|         | Sep 8, 2025  | (NON-DOCUMENT) ORDER REFERRING MOTION for protective order 82 to Magistrate Judge Ray Kent under 28 U.S.C. 636(b)(1)(A); signed by Judge Robert J. Jonker (sjc) (Entered: 09/08/2025)                                                                                                                                                              |
| 84      | Sep 9, 2025  | ANSWER to complaint, 1 with affirmative defenses , COUNTERCLAIM against Tiara Yachts, Inc. by Blue Cross Blue Shield of Michigan (Attachments: # 1 Exhibit A - Release) (Zausmer, Mark) (Entered: 09/09/2025)                                                                                                                                      |
|         | Sep 10, 2025 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Justin M. Wolber on behalf of counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Wolber, Justin) (Entered: 09/10/2025)                                                                                                                                                                      |
| 85      | Sep 10, 2025 | DEMAND for TRIAL BY JURY by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Wolber, Justin) (Entered: 09/10/2025)                                                                                                                                                                                                              |
| 86      | Sep 11, 2025 | MOTION to compel Discovery by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc.; (Phelps, Aaron) (Entered: 09/11/2025)                                                                                                                                                                                                            |
| 87      | Sep 11, 2025 | BRIEF in support of MOTION to compel Discovery 86 filed by Tiara Yachts, Inc. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G) (Phelps, Aaron) (Entered: 09/11/2025)                                                                                                         |
| 88      | Sep 11, 2025 | CERTIFICATE regarding compliance with LCivR 7.1(d) re MOTION to compel Discovery 86 filed by Tiara Yachts, Inc. (Phelps, Aaron) (Entered: 09/11/2025)                                                                                                                                                                                              |
|         | Sep 12, 2025 | (NON-DOCUMENT) ORDER REFERRING MOTION to compel Discovery 86 to Magistrate Judge Ray Kent under 28 U.S.C. 636(b)(1)(A); signed by Judge Robert J. Jonker (sjc) (Entered: 09/12/2025)                                                                                                                                                               |
| 89      | Sep 15, 2025 | EMERGENCY MOTION for protective order Regarding Plaintiff's Premature Deposition Notices with Brief in Support by defendant Blue Cross Blue Shield of Michigan; (Attachments: # 1 Index, # 2 Exhibit A - Jones-Schneider Deposition Notice, # 3 Exhibit B - Baker Subpoena) (Zausmer, Mark) Modified text on 9/16/2025 (pjw) (Entered: 09/15/2025) |
| 90      | Sep 15, 2025 | CERTIFICATE of compliance re word count for EMERGENCY MOTION for protective order Regarding Plaintiff's Premature Deposition Notices 89 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 09/15/2025)                                                                                                                          |
| 91      | Sep 15, 2025 | MOTION to compel Depositions by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc.; (Phelps, Aaron) (Entered: 09/15/2025)                                                                                                                                                                                                          |
| 92      | Sep 15, 2025 | BRIEF in support of MOTION to compel Depositions 91 filed by Tiara Yachts, Inc. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G) (Phelps, Aaron) (Entered: 09/15/2025)                                                                                                       |
| 93      | Sep 15, 2025 | CERTIFICATE regarding compliance with LCivR 7.1(d) re MOTION to compel Depositions 91 filed by Tiara Yachts, Inc. (Phelps, Aaron) (Entered: 09/15/2025)                                                                                                                                                                                            |
| 94      | Sep 16, 2025 | CERTIFICATE regarding compliance with LCivR 7.1(d) re MOTION for protective order 82 , EMERGENCY MOTION for protective order Regarding Plaintiff's Premature Deposition Notices 89 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 09/16/2025)                                                                               |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                |
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| 95      | Sep 18, 2025 | NOTICE re 82 , 89 Request for Oral Argument by counter-claimant Blue Cross Blue Shield of Michigan, defendant Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 09/18/2025)                                                                                                     |
|         | Sep 18, 2025 | (NON-DOCUMENT) ORDER REFERRING EMERGENCY MOTION for protective order Regarding Plaintiff's Premature Deposition Notices 89 to Magistrate Judge Ray Kent under 28 U.S.C. 636(b)(1)(A); signed by Judge Robert J. Jonker (sjc) (Entered: 09/18/2025)                                         |
|         | Sep 18, 2025 | (NON-DOCUMENT) ORDER REFERRING MOTION to compel Depositions 91 to Magistrate Judge Ray Kent under 28 U.S.C. 636(b)(1)(A); signed by Judge Robert J. Jonker (sjc) (Entered: 09/18/2025)                                                                                                     |
| 96      | Sep 18, 2025 | RESPONSE in opposition to MOTION for protective order 82 with certificate of compliance filed by Tiara Yachts, Inc. (Phelps, Aaron) Modified text on 9/18/2025 (mlc) (Entered: 09/18/2025)                                                                                                 |
| 97      | Sep 18, 2025 | RESPONSE in opposition to EMERGENCY MOTION for protective order Regarding Plaintiff's Premature Deposition Notices 89 filed by Tiara Yachts, Inc. (Attachments: # 1 Exhibit A) (Phelps, Aaron) (Entered: 09/18/2025)                                                                       |
| 98      | Sep 18, 2025 | NOTICE re 86 , 91 of Request for Oral Argument by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Phelps, Aaron) (Entered: 09/18/2025)                                                                                                                                 |
| 99      | Sep 24, 2025 | ORDER temporarily staying discovery pending the Court's consideration of outstanding discovery motions 82 , 86 , 89 and 91 ; signed by Magistrate Judge Ray Kent (bjg) (Entered: 09/24/2025)                                                                                               |
| 100     | Sep 24, 2025 | RESPONSE TO MOTION to compel Discovery 86 filed by Blue Cross Blue Shield of Michigan (Attachments: # 1 Index, # 2 Exhibit A - Discovery Requests, # 3 Exhibit B - Muncy Declaration, # 4 Exhibit C - Ozdarski Declaration) (Zausmer, Mark) (Entered: 09/24/2025)                          |
| 101     | Sep 24, 2025 | CERTIFICATE of compliance re word count for Response to Motion, 100 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 09/24/2025)                                                                                                                                      |
| 102     | Sep 25, 2025 | ANSWER Counterclaim 84 with additional defenses by Tiara Yachts, Inc. (Rynders, Perrin) Modified text on 9/26/2025 (pjlw) (Entered: 09/25/2025)                                                                                                                                            |
| 103     | Sep 29, 2025 | RESPONSE TO MOTION to compel Depositions 91 filed by Blue Cross Blue Shield of Michigan (Attachments: # 1 Index, # 2 Exhibit A - Jones-Schneider Deposition Notice, # 3 Exhibit B - Baker Subpoena) (Zausmer, Mark) (Entered: 09/29/2025)                                                  |
| 104     | Sep 29, 2025 | CERTIFICATE of compliance re word count for Response to Motion 103 to Compel Depositions filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 09/29/2025)                                                                                                                 |
| 105     | Sep 30, 2025 | NOTICE OF MOTION HEARING regarding document number 82 , 86 , 89 , 91 : motion hearing is set for 10/9/2025 at 01:30 PM at 584 Federal Building, Grand Rapids, MI before Magistrate Judge Ray Kent; (bjg) (Entered: 09/30/2025)                                                             |
| 106     | Oct 2, 2025  | NOTICE RESCHEDULING MOTION HEARING regarding document number 89 , 82 , 91 , 86 that was previously set for 10/9/2025 at 1:30 p.m.; motion hearing is set for 10/7/2025 at 01:30 PM at 584 Federal Building, Grand Rapids, MI before Magistrate Judge Ray Kent; (bjg) (Entered: 10/02/2025) |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
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| 107     | Oct 7, 2025  | MINUTES of motion hearing re 82 MOTION for protective order filed by Blue Cross Blue Shield of Michigan, 86 MOTION to compel Discovery filed by Tiara Yachts, Inc., 89 EMERGENCY MOTION for protective order Regarding Plaintiff's Premature Deposition Notices filed by Blue Cross Blue Shield of Michigan, 91 MOTION to compel Depositions filed by Tiara Yachts, Inc. held before Magistrate Judge Ray Kent; order to issue (Proceedings Digitally Recorded) (klb) (Entered: 10/07/2025)                                                                                                                                                                                                                                                                                                                                                                            |
| 108     | Oct 8, 2025  | TRANSCRIPT of Motions for Protective Order and Compel held 10/07/2025 before Magistrate Ray Kent; NOTE: this transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the release of transcript restriction date; after that date it may be obtained through PACER; under the Policy Regarding Transcripts the parties have 14 days within which to file a Notice of Intent to redact, and 21 days within which to file a Redaction Request; if no Transcript Redaction Request is filed, the court will assume redaction of personal identifiers is not necessary and this transcript will be made available via PACER after the release of transcript restriction set for 1/6/2026 ; redaction request due 10/29/2025 (Court Reporter-Transcriptionist: Brandell, Paul (517) 230-7507) (Entered: 10/08/2025) |
| 109     | Oct 9, 2025  | ORDER denying 82 motion for protective order as moot; denying 86 motion to compel; denying 89 motion for protective order; granting 91 motion to compel depositions; signed by Magistrate Judge Ray Kent (bjg) (Entered: 10/09/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 110     | Oct 15, 2025 | CERTIFICATE OF SERVICE by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. for Notice of Deposition of Kimberly Jones-Schneider and Notice of Deposition of Jeff Baker (Wolber, Justin) (Entered: 10/15/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 111     | Oct 23, 2025 | CERTIFICATE OF SERVICE by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. for Tiara Yachts, Inc.'s Amended First Set of Requests for Production of Documents to Blue Cross Blue Shield (Rynders, Perrin) (Entered: 10/23/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 112     | Oct 23, 2025 | NOTICE OF APPEAL TO DISTRICT JUDGE by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. regarding Magistrate Judge order number 109 (Rynders, Perrin) (Entered: 10/23/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 113     | Nov 6, 2025  | RESPONSE in opposition to NOTICE OF APPEAL TO DISTRICT JUDGE by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. regarding Magistrate Judge order number 109 112 filed by Blue Cross Blue Shield of Michigan (Scherbarth, Nathan) (Entered: 11/06/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 114     | Nov 6, 2025  | NOTICE to attorney Nathan Scherbarth regarding recent filing 113 (pjw) (Entered: 11/06/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 115     | Nov 11, 2025 | CERTIFICATE OF SERVICE by defendant Blue Cross Blue Shield of Michigan for Interrogatories and Requests for Production directed to Plaintiff (Schneider, Jason) (Entered: 11/11/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 116     | Nov 12, 2025 | ORDER AFFIRMING 109 magistrate judge decision; signed by Judge Robert J. Jonker (elam) (Entered: 11/12/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 117     | Nov 14, 2025 | (REJECTED) PROPOSED STIPULATION AND QUALIFIED PROTECTIVE ORDER by defendant Blue Cross Blue Shield of Michigan (Zausmer, Mark) Modified text on 11/14/2025 (pjw); Modified on 11/18/2025 to reflect rejected per Order 119 (pjw) (Entered: 11/14/2025)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 118     | Nov 14, 2025 | OBJECTION re 117 by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                    |
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|         |              | (Attachments: # 1 Exhibit A - September 8, 2025 Draft PO) (Rynders, Perrin) (Entered: 11/14/2025)                                                                                                                                                                                                              |
| 119     | Nov 17, 2025 | ORDER rejecting PROPOSED ORDER 117 ; the parties may submit another version on which they agree, or on their own and the Court will decide in due course; signed by Judge Robert J. Jonker (elam) (Entered: 11/17/2025)                                                                                        |
| 120     | Dec 24, 2025 | CERTIFICATE OF SERVICE by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. for Objections and Responses to BCBSM's First Set of Requests for Production of Documents, Objections and Answers to BCBSM's First Set of Interrogatories, and production (Rynders, Perrin) (Entered: 12/24/2025) |
| 121     | Dec 31, 2025 | SUPPLEMENT re Joint Status Report (Rule 16) 75 by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Rynders, Perrin) (Entered: 12/31/2025)                                                                                                                                                   |
| 122     | Jan 8, 2026  | STIPULATION and PROPOSED PROTECTIVE ORDER by counter-defendant/plaintiff Tiara Yachts, Inc. (Rynders, Perrin) Modified text on 1/8/2026 (pjw) (Entered: 01/08/2026)                                                                                                                                            |
| 123     | Jan 13, 2026 | ORDER granting PROPOSED ORDER 122 with modifications made by the Court in paragraph E(1) ; signed by Judge Robert J. Jonker (elam) (Entered: 01/13/2026)                                                                                                                                                       |
| 124     | Jan 28, 2026 | MOTION to compel Discovery by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc.; (Phelps, Aaron) (Entered: 01/28/2026)                                                                                                                                                                        |
| 125     | Jan 28, 2026 | BRIEF in support of MOTION to compel Discovery 124 filed by Tiara Yachts, Inc. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E) (Phelps, Aaron) (Entered: 01/28/2026)                                                                                                  |
| 126     | Jan 28, 2026 | CERTIFICATE regarding compliance with LCivR 7.1(d) re MOTION to compel Discovery 124 filed by Tiara Yachts, Inc. (Phelps, Aaron) (Entered: 01/28/2026)                                                                                                                                                         |
| 127     | Jan 28, 2026 | CERTIFICATE of compliance re word count for Brief in Support of a Motion 125 filed by Tiara Yachts, Inc. (Phelps, Aaron) (Entered: 01/28/2026)                                                                                                                                                                 |
|         | Jan 29, 2026 | (NON-DOCUMENT) ORDER REFERRING MOTION to compel Discovery 124 to Magistrate Judge Ray Kent under 28 U.S.C. 636(b)(1)(A); signed by Judge Robert J. Jonker (sjc) (Entered: 01/29/2026)                                                                                                                          |
| 128     | Feb 4, 2026  | NOTICE re 124 of Request for Oral Argument by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Phelps, Aaron) (Entered: 02/04/2026)                                                                                                                                                         |
| 129     | Feb 6, 2026  | CERTIFICATE OF SERVICE by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. for Second Set of Requests for Production of Documents (Phelps, Aaron) (Entered: 02/06/2026)                                                                                                                      |
| 130     | Feb 11, 2026 | RESPONSE TO MOTION to compel Discovery 124 filed by Blue Cross Blue Shield of Michigan (Attachments: # 1 Index, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F, # 8 Exhibit G, # 9 Exhibit H) (Zausmer, Mark) (Entered: 02/11/2026)                                  |
| 131     | Feb 11, 2026 | CERTIFICATE of compliance re word count for Response to Motion, 130 filed by Blue Cross Blue Shield of Michigan (Zausmer, Mark) (Entered: 02/11/2026)                                                                                                                                                          |
| 132     | Feb 13, 2026 | STIPULATION and PROPOSED ORDER regarding Amending Discovery Deadlines by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Attachments: # 1                                                                                                                                                  |

| Entry # | Filing Date  | Description                                                                                                                                                                                                                                                                                                          |
|---------|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|         |              | Proposed Order) (Phelps, Aaron) (Entered: 02/13/2026)                                                                                                                                                                                                                                                                |
| 133     | Feb 13, 2026 | NOTICE of Withdrawal of Attorney Appearance of Justin M. Wolber by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Wolber, Justin) (Entered: 02/13/2026)                                                                                                                                         |
|         | Feb 17, 2026 | (NON-DOCUMENT) ORDER REFERRING STIPULATION and PROPOSED ORDER regarding Amending Discovery Deadlines by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. 132 to Magistrate Judge Ray Kent under 28 U.S.C. 636(b)(1)(A); signed by Judge Robert J. Jonker (sjc) (Entered: 02/17/2026)               |
|         | Feb 19, 2026 | (NON-DOCUMENT) ATTORNEY APPEARANCE of Gage Michael Selvius on behalf of counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Selvius, Gage) (Entered: 02/19/2026)                                                                                                                                     |
| 134     | Feb 27, 2026 | CERTIFICATE OF SERVICE by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. for Expert Witness Disclosures (Phelps, Aaron) (Entered: 02/27/2026)                                                                                                                                                    |
| 135     | Mar 2, 2026  | NOTICE OF MOTION HEARING regarding 124 plaintiff's motion to compel; motion hearing is set for 3/13/2026 at 02:30 PM at 584 Federal Building, Grand Rapids, MI before Magistrate Judge Ray Kent; (bjg) (Entered: 03/02/2026)                                                                                         |
| 136     | Mar 2, 2026  | ORDER granting STIPULATION 132 Amending Discovery Deadlines; signed by Magistrate Judge Ray Kent (bjg) (Entered: 03/02/2026)                                                                                                                                                                                         |
| 137     | Mar 10, 2026 | NOTICE RESCHEDULING MOTION HEARING regarding motion to compel 124 that was previously set for 3/13/2026; motion hearing is set for 4/2/2026 at 02:30 PM at 584 Federal Building, Grand Rapids, MI before Magistrate Judge Ray Kent; (bjg) (Entered: 03/10/2026)                                                      |
| 138     | Mar 24, 2026 | CERTIFICATE OF SERVICE by defendant Blue Cross Blue Shield of Michigan for Response to Plaintiff's Second Requests for Production (Schneider, Jason) (Entered: 03/24/2026)                                                                                                                                           |
| 139     | Mar 27, 2026 | NOTICE RESCHEDULING MOTION HEARING regarding document number 124 that was previously set for April 2, 2026 at 2:30 p.m.; motion hearing is set for 4/14/2026 at 11:00 AM at 584 Federal Building, Grand Rapids, MI before Magistrate Judge Ray Kent; (bjg) (Entered: 03/27/2026)                                     |
| 140     | Apr 14, 2026 | STIPULATION and PROPOSED ORDER regarding Withdrawal of Plaintiff's Motion to Compel by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. (Attachments: # 1 Proposed Order) (Rynders, Perrin) (Entered: 04/14/2026)                                                                                  |
|         | Apr 14, 2026 | (NON-DOCUMENT) ORDER REFERRING STIPULATION and PROPOSED ORDER regarding Withdrawal of Plaintiff's Motion to Compel by counter-defendant Tiara Yachts, Inc., plaintiff Tiara Yachts, Inc. 140 to Magistrate Judge Ray Kent under 28 U.S.C. 636(b)(1)(A); signed by Judge Robert J. Jonker (sjc) (Entered: 04/14/2026) |
| 141     | Apr 14, 2026 | ORDER regarding withdrawal of plaintiff's motion to compel 124 140 ; signed by Magistrate Judge Ray Kent (bjg) (Entered: 04/14/2026)                                                                                                                                                                                 |